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Breikot Management Ltd
member of Nikodea Media Group
Vasileiou Voulgaroktonou 67,
1010, Nicosia
(Attention: XXXXXXXXXXXX,
Director of Breikot Management Ltd)

May 17, 2023

Decision on Review Regarding the Amount Imposed

Based on the duties and powers conferred upon me by Article 57(1)(f) of the Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, I examined five (5) separate complaints (reports) submitted to my Office on October 17, 2018, by the law firm Athos Demetriou Associates LLC, on behalf of their clients XXXXXXXXXXXX (hereinafter referred to as "complainants") against Breikot Management Ltd, a member of the Nikodea Media Group (hereinafter referred to as "the respondent"), regarding four (4) publications concerning the complainants in the printed newspaper 24h, signed by XXXXXXXX.

Based on the investigation, I found a violation of the Regulation by the respondent and issued a decision on April 12, 2019, based on the incidents summarized below.

2. Summary of the Complaint

2.1 On October 17, 2018, a complaint (report) was submitted by the complainants to my Office regarding the publication of a) the full names of all the complainants, b) photographs of three of them, and c) a reference to the conviction of one of them, in articles published in a print owned by the respondent. After examining the incidents of the case, I proceeded to weigh the right to freedom of expression and information against the right to protection of private and family life and the protection of personal data. Taking into account the Principle of Data Minimization, I issued a Decision dated April 12, 2019.

The conclusion of my decision was as follows:

"The four (4) publications in the printed edition of the newspaper '24h', which is owned by the respondent, were made for the purpose of informing the public, and the mention of the names of the complainants and the conviction of one of them outweighs the interests, fundamental rights, and freedoms of the complainants. Therefore, I find that there is no violation of the provisions of the Regulation by the respondent regarding the publication of the names of the complainants in the contested publications. However, the publication of the photographs of three (3) of the five (5) complainants in three (3) of the four (4) publications, namely on the dates 28-30/9/2018, 5-7/10/2018, and 12-14/10/2018, exceeds the principle of data minimization and is, in any case, excessive in relation to the intended purpose, in violation of Articles 5(1)(c) and 6 of the Regulation and Article 29(1) of Law 125(I)/2018, given that the news could have been published without their photographs, since the issue of journalistic interest is the fact that the architectural firm of the complainants' family continues to undertake public works while one of them has been convicted for a fatal work accident. The publication of the photographs does not serve the interest of informing the public and is not deemed necessary within the framework of the principle of minimization, nor does it add any additional value to the public's right to information."

2.2 The complaint was submitted to my Office on 17/10/2018, approximately one month after the first publication by the respondent. The respondent, at no stage of the process, indicated when it deleted the publications from its website. The only thing mentioned was in its letter dated 12/3/2019, "...that as soon as we were informed of their complaint, all articles were 'taken down' without your indication..."

2.3 The Officer of my Office, on 29/10/2018, informed the respondent in writing about the complaint that was submitted. Given that the respondent states that all articles were 'taken down' as soon as they were informed without the indication of my Office, it appears that the four (4) publications were deleted from the website around 29/10/2018, that is, approximately one (1) month after the first publication, which was on 28-30/9/2018. However, the printed editions of the newspaper 24h, in which the photographs of the three (3) complainants were also published, were never withdrawn and still exist today.

2.4 The number of readers, that is, the extent cannot be calculated, since the printed newspaper can be read by countless individuals. If the circulation of the newspaper is X hundreds/thousands, this does not mean that it is not read by X+1 hundreds/thousands. Especially when the newspaper may be found in cafes and entertainment venues where many people gather daily.

2.5 Furthermore, it cannot be determined the number of individuals who read the articles in question in the electronic edition of 24h during the approximately one month they were posted.

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2.6 Weighing all mitigating and aggravating factors, I imposed on the legally responsible party for the actions of the Respondent, namely Breikot Management Ltd, in its capacity as data controller, a monetary penalty of €3,000 (three thousand euros) for violation of its obligations under Articles 5(1)(c) and 6 of the Regulation.

2.6 Against the decision dated April 12, 2009, the Respondent filed an appeal before the Administrative Court on January 24, 2019, under number XXXXXX.

2.7 On December 16, 2022, the Administrative Court issued a decision on Appeal number 962/2019, upholding my Office's Decision dated April 12, 2019, to the extent concerning the violation, but annulling it to the extent concerning the amount of the administrative fine imposed.

The Court, among other things, stated the following:

"I find the decision of the Respondent reasonable regarding the finding of the violation; however, I do not find it justified concerning the administrative fine imposed, particularly its amount. This is because, from the same text of the decision, while reasons are recorded supporting the extremely brief duration of the violation, it does not appear that the degree of damage suffered by the three individuals was adequately taken into account regarding the amount of the fine."

2.8 In the context of the above partially annulled decision of the Court and in conjunction with the provisions of Article 57 of the General Principles of Administrative Law Law of 1999 (158(I)/1999), as well as a relevant recommendation I received from the Office of the Attorney General, it was decided to re-examine the case against the Respondent, only to the extent concerning the amount of the administrative fine imposed.

3. Legal Aspect

3.1 According to Article 57(1)(f) of Regulation (EU) 2016/679, the Office of the Commissioner for Personal Data Protection is duty-bound to handle complaints submitted by data subjects, while according to Article 57(1)(a), it monitors and enforces the application of the Regulation.

3.1.1 Article 57 of the General Principles of Administrative Law Law of 1999 (158(I)/1999) provides that:

57. Following an annulment decision, the act is nullified, and the administration is obliged to restore the situation to what it was before the issuance of the annulled act.

3.1.2 Article 47 of the General Principles of Administrative Law Law of 1999 (158(I)/1999) provides that:

47. The elements that the administration must take into account when exercising its discretionary power must be lawful and relevant to the purpose pursued by law.

3.2 In the cases Vnukovo Airlines (V.A.) and others v. Attorney General (2001) 1 A.A.D. 969 and

Kyriakides v. Republic (2013) 3 A.A.D. 629, it was held that the administration is obliged to restore the situation to what it was before the annulment, to ensure the process of re-examination of the contested administrative matter, and to decide in a manner compliant and aligned with the findings of the administrative court. During the re-examination, the administrative process is resumed from the point deemed unlawful.

3.3 More specifically, in Kyriakides v. Republic (2013) 3 A.A.D. 629, it was stated:

“... we consider that in any case of an annulment decision, it is the duty of the Administration to proceed with a re-examination - or, when a reason is found, to re-investigate (see Naziris v. R.I.K. (2007) 3 A.A.D. 38) - to restore the violated legality, as established in the revisory annulment decision. This is, in our opinion, a duty emphasized by consistently stable and clear case law (see Englezaki and others v. Attorney General (1992) 1(A) A.A.D. 697, which refers to earlier case law on the matter, as well as Attorney General v. Holy Archdiocese of Cyprus (1999) 1(A) A.A.D. 342), which case law does not seem to recognize that it is diminished even in cases where physical (in natura) restoration of the situation to its previous state cannot be achieved...”

3.4 It should also be noted that based on Article 58(2), the Commissioner has the following corrective powers:

- a) to issue warnings to the data controller or the processor that intended processing operations are likely to violate provisions of this Regulation,
 - b) to issue reprimands to the data controller or the processor when processing operations have violated provisions of this Regulation,
 - c) to order the data controller or the processor to comply with the requests of the data subject to exercise their rights under this Regulation,
 - d) to order the data controller or the processor to bring processing operations into compliance with the provisions of this Regulation, if necessary, in a specific manner and within a certain deadline,
 - e) to order the data controller to notify the data subject of a personal data breach,
 - f) to impose a temporary or definitive limitation, including a ban on processing,
 - g) to order the rectification or erasure of personal data or restriction of processing pursuant to Articles 16, 17, and 18 and to order notification of such actions to recipients to whom the personal data have been disclosed pursuant to Article 17(2) and Article 19,
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- e) to withdraw the certification or to order the certification body to withdraw a certificate issued in accordance with Articles 42 and 43 or to order the certification body not to issue certification, provided that the certification requirements are not met or are no longer met,
- f) to impose an administrative fine pursuant to Article 83, in addition to or instead of the measures referred to in this paragraph, depending on the circumstances of each individual case,
- g) to order the suspension of data flow to a recipient in a third country or to an international organization.

3.5 Article 83 of the Regulation, which concerns the general terms for the imposition of administrative fines, among other things, provides the following:

“1. Each supervisory authority ensures that the imposition of administrative fines in accordance with this article for violations of this regulation referred to in paragraphs 4, 5, and 6 is effective, proportionate, and deterrent for each individual case.

2. Administrative fines, depending on the circumstances of each individual case, are imposed in addition to or instead of the measures referred to in Article 58 paragraph 2 points a) to h) and in Article 58 paragraph 2 point i). In deciding on the imposition of an administrative fine, as well as on the amount of the administrative fine for each individual case, the following are duly taken into account:

- a) the nature, gravity, and duration of the violation, taking into account the nature, scope, or purpose of the relevant processing, as well as the number of data subjects affected by the violation and the degree of damage suffered,
- b) the intent or negligence that caused the violation,
- c) any actions taken by the data controller or the processor to mitigate the damage suffered by the

data subjects,

- d) the degree of responsibility of the data controller or the processor, taking into account the technical and organizational measures they have implemented pursuant to Articles 25 and 32,
- e) any relevant previous violations by the data controller or the processor,
- f) the degree of cooperation with the supervisory authority to remedy the violation and mitigate its possible adverse effects,
- g) the categories of personal data affected by the violation,
- h) the manner in which the supervisory authority became aware of the violation, particularly whether and to what extent the data controller or the processor notified the violation,
- i) in cases where measures referred to in Article 58 paragraph 2 were previously ordered against the involved data controller or processor regarding the same subject matter, compliance with those measures,
- j) adherence to approved codes of conduct in accordance with Article 40 or approved certification mechanisms in accordance with Article 42, and

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- k) any other aggravating or mitigating factor arising from the circumstances of the specific case, such as the financial benefits gained or losses avoided, directly or indirectly, from the violation.

3. In cases where the data controller or the processor, for the same or related processing operations, violates several provisions of this regulation, the total amount of the administrative fine shall not exceed the amount specified for the most serious violation.

4. Violations of the following provisions shall incur, according to paragraph 2, administrative fines of up to 10,000,000 EUR or, in the case of undertakings, up to 2% of the total worldwide annual turnover of the preceding financial year, whichever is higher:

- a) the obligations of the data controller and the processor under Articles 8, 11, 25 to 39, and 42 and 43,
- b) the obligations of the certification body under Articles 42 and 43,
- c) the obligations of the monitoring body under Article 41 paragraph 4.

5. Violations of the following provisions shall incur, according to paragraph 2, administrative fines of up to 20,000,000 EUR or, in the case of undertakings, up to 4% of the total worldwide annual turnover of the preceding financial year, whichever is higher:

- a) the basic principles for processing, including the conditions for consent, in accordance with Articles 5, 6, 7, and 9,
- b) the rights of data subjects in accordance with Articles 12 to 22,
- c) the transfer of personal data to a recipient in a third country or to an international organization in accordance with Articles 44 to 49,
- d) any obligations under the law of the member state established pursuant to Chapter IX,
- e) non-compliance with an order or with a temporary or definitive restriction of processing or with a suspension of data flow imposed by the supervisory authority pursuant to Article 58 paragraph 2 or failure to provide access in violation of Article 58 paragraph 1.”

3.5.1 Recital (148) of the Regulation further clarifies that:

“(148) In order to strengthen the enforcement of the rules of this regulation, penalties, including administrative fines, should be imposed for each violation of this regulation, in addition to or instead of appropriate measures imposed by the supervisory authority in accordance with this regulation. In the case of a minor violation or if the fine that may be imposed would constitute a disproportionate burden on a natural person, a reprimand could be imposed instead of a fine. However, due regard should be given to the nature, seriousness, and duration of the violation, the intentional character of the violation, the actions taken to mitigate the damage, the degree of responsibility, or any other relevant previous violations, the manner in which the supervisory authority became aware of the violation, particularly whether and to what extent the data controller or the processor notified the violation.”

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where the supervisory authority became aware of the violation, compliance with the measures against the data controller or the processor, adherence to a code of conduct, and any other aggravating or mitigating factors. The imposition of sanctions, including administrative fines, shall be subject to appropriate procedural guarantees in accordance with the general principles of Union law and the Charter, including effective judicial protection and due process."

3.5.2 In the introductory note of Guidelines 4/2022 for the calculation of administrative fines based on GDPR 2016/679, issued by the European Data Protection Board (EDPB) on May 12, 2022 (which are under public consultation), the following is noted:

"The calculation of the amount of the fine is at the discretion of the supervisory authority, subject to the rules provided for in the GDPR. In that context, the GDPR requires that the amount of the fine shall in each individual case be effective, proportionate and dissuasive (Article 83(1) GDPR). Moreover, when setting the amount of the fine, supervisory authorities shall give due regard to a list of circumstances that refer to features of the infringement (its seriousness) or of the character of the perpetrator (Article 83(2) GDPR). Lastly, the amount of the fine shall not exceed the maximum amounts provided for in Articles 83(4), (5) and (6) GDPR. The quantification of the amount of the fine is therefore based on a specific evaluation carried out in each case, within the parameters provided for by the GDPR."

4. Reasoning

4.1 Complying with the provisions of Law No. 158(I)/1999, the directives of the Court, the relevant case law (see e.g. *Kyriakides v. Republic*, above), and the recommendation of the Legal Service, my Office had the duty to re-examine the present complaint from the point raised by the Court in its annulment decision, specifically to the extent concerning the amount of the administrative fine imposed.

4.2 The facts of the complaint do not differ from the initial decision dated April 12, 2009, and are adopted as they were reported, and in any case, were confirmed by the decision of the Administrative Court, dated 16/12/2022, in Appeal No. 962/2019.

4.3 I note that the Supreme Court upheld a decision of my Office in the Revisory Appeal No. 32/2013, dated 1/3/2019, between the Republic of Cyprus, through the Commissioner for Personal Data Protection, and the publishing house *Dias Ltd*, which also concerned a violation of the Principle of Proportionality, and I had imposed a fine of €3,000. This amount was determined, with the maximum imposed amount at that time being €30,000. Following the application of GDPR 2016/679 on May 25, 2018, for the same violation (principle of minimization, as in the present case), a maximum administrative sanction of €20,000,000 is provided.

4.5 Additionally, on 16/1/2023, I issued a decision, after re-examining a complaint, against the company *Arktinos Publications Ltd* and imposed an administrative

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A fine of €7,000 for the violation of Articles 5(1)(c) and 6(1)(f) of the GDPR, due to the publication of more personal data than necessary to serve the public's right to information.

5. Conclusion

5.1 Taking into account all the above elements as presented, and based on the powers granted to me by Articles 58 and 83 of Regulation (EU) 2016/679, Article 24(b) of Law 125(I)/2018, and given that there has been a violation of the provisions of the Regulation, as confirmed by the Administrative Court, I will proceed with the imposition of a penalty.

5.2 Based on the provisions of Article 83 of the Regulation, to the extent that they apply in this specific case, I take into account the following mitigating (a)-(d) and aggravating (e)-(h) factors, based on the facts as they currently stand before me:

(a) the position of the respondent that due to negligence and not intentionally, published in the newspaper the photographs of the three (3) complainants,

(b) the fact that the respondent deleted the said four (4) articles from the electronic edition of the

newspaper 24h as soon as it became aware of the complaint, namely with the letter sent from my Office on 29/10/2018, and before receiving any written order from my Office,

- (c) the fact that the respondent, in the course of the investigation, cooperated with my Office to rectify the violation and limit its potential adverse effects, and
- (d) the fact that this is the first complaint submitted to my Office against the respondent,
- (e) the nature of the violation, which affects the professional lives of the complainants, although the European Court of Human Rights has ruled in relation to the provision of Article 8 of the ECHR that the protection of "private life" established in this article does not exclude the professional life of employees and is not limited to life within the place of residence,
- (f) the extent of the violation: the four (4) publications were posted online for at least one (1) month before their deletion, with an indefinite number of readers, the printed editions of the newspaper 24h have not been withdrawn to this day, and the number of readers remains unknown,
- (g) the number of data subjects affected by the violation: the three (3) complainants whose photographs were published are directly affected, and indirectly the family environment of the five (5) complainants,
- (h) the categories of personal data affected by the violation: it concerns simple data, namely the photographs of three (3) of the five (5) complainants.

5.3 In my previous Decision dated April 12, 2019, I imposed an administrative fine of €3,000 on the respondent for its violation of obligations under Articles 5(1)(c) and 6 of the GDPR, after taking into account various aggravating and mitigating factors, with positive and negative weight respectively, depending on the severity of the mitigating or aggravating factor each time.

5.4 I also note that in the Review Appeal No. 32/2013, which confirmed a Decision of my Office, the administrative sanction imposed on the appellant, amounting to €3,000, was also upheld. This amount had been determined, with the maximum imposed amount at that time being €30,000. Following the application of the GDPR 2016/679 on May 25, 2018, for the same violation (principle of minimization, as in the present case), a maximum administrative sanction of €20,000,000 is provided.

5.5 Taking into account the aggravating and mitigating factors outlined in paragraph 5.2 of this Decision, as they have been shaped during the review of the case, as well as the fact that photographs of three (3) of the five (5) complainants were posted, I impose on the respondent an administrative fine of €3,000 for its violation of Articles 5(1)(c) and 6 of the GDPR.

5.6 There was no reduction of the administrative fine or differentiation from the first Decision of my Office, as there was no differentiation in the aggravating and mitigating factors that were taken into account during the review. The violation that was established and confirmed by the Administrative Court specifically concerned the publication of the photographs of three (3) of the five (5) complainants. The reference to the two cases, with similar incidents, in which monetary penalties were imposed, particularly that of the Review Appeal, I believe reinforces and justifies the amount of the monetary penalty.

Peace Loizidou Nicolaidou
Commissioner for the Protection of Personal Data